

Tentative Rulings for July 16, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 782 8254**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2402839	BARTELS vs REGENTS OF THE UNIVERSITY OF CALIFORNIA	MOTION FOR RELIEF FROM DEFENDANT WATKINS DEMURRER UNDER CCP 473 (B)

Tentative Ruling:

Watkins was ordered dismissed from the case after her demurrer was sustained without leave to amend.

Plaintiff argues that relief under CCP § 473(b) is warranted because Watkins introduced factual characterizations of her own role in her demurrer that were erroneously convincing the Court to accept these erroneous facts and grant the motion. This motion is not brought on Plaintiff's mistake, inadvertence, or surprise. Instead, it is brought on allegedly misleading or false statements made by Watkins in her moving papers. This conduct does not support CCP § 473(b) relief, which must be based on mistake, inadvertence, surprise, or excusable neglect on the part of the moving party.

Additionally, a demurrer looks only at whether the pleading states facts sufficient to support a cause of action. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) It does not look at allegations made outside of the pleadings. (*Ibid.*) The appropriateness of the Court's ruling was challenged by Plaintiff via a writ. The writ was denied by the Court of Appeal. Review of the appellate opinion was denied by the California Supreme Court. As such, if this is an attempt to seek reconsideration of the Court's ruling on the demurrer, this is inappropriate in light of these rulings and CCP § 1008, which requires such a motion to be brought within 10 days of a notice of ruling (which was served on 4/7/25). **As such, the motion is denied.**

Further, the request for leave to amend fails to comply with California Rules of Court. **The court denies the request for leave to amend.**

Watkins argues that the Court can set an order to show cause regarding sanctions for Plaintiff's improper motion. **The court declines setting an order to show cause against Bartels at this time.**

Moving party Bartels is ordered to give notice of the ruling.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502987	WHITELEY vs HARLEY-DAVIDSON MOTOR COMPANY, INC.	MOTION TO QUASH DEFENDANTS' SUBPOENAS SERVED ON PLAINTIFF'S SUBSEQUENT EMPLOYER

Tentative Ruling:

The court's Order Granting Joint Supplement to (1) Plaintiff's Motion for an Order Quashing Defendants' Subpoena Served on Plaintiff's Subsequent Employer and (2) Defendant's Motion to Enforce Subpoena to Frinj Energy-Heating & Air Conditioning, filed May 26, 2026 orders that:

1. Plaintiff's Motion for an Order Quashing Defendants' Subpoena Served on Plaintiff's Subsequent Employer, filed on March 30, 2026, and (2) Defendants' Motion to Enforce Subpoena to Frinj Energy-Heating & Air Conditioning (the "Pending Motions") are supplemented to cover the Parties' dispute concerning the Best in Batteries, Inc. subpoena in addition to the Frinj Energy-Heating & Air Conditioning subpoena
2. The Parties' oppositions and reply briefs shall address both subpoenas; and
3. The June 2, 2026 hearing shall cover both subpoenas, and the Court's order on the Pending Motions shall be applicable to both subpoenas.

Thus, hearing on this Motion to Quash Defendants' Subpoenas Served on Plaintiff's Subsequent Employer was advanced and heard on June 2, 2026. On June 2, 2026, the court quashed the deposition subpoenas as to both Best in Batteries, Inc. and Frinj Energy-Heating & Air Conditioning, without prejudice to Defendants issuing appropriately tailored subpoenas. No sanctions were ordered.

This hearing is thus vacated.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506427	RESNICK vs RIVERSIDE HEALTHCARE SYSTEM, L.P.	MOTION FOR RECONSIDERATION OF MOTION TO COMPEL ARBITRATION

Tentative Ruling:

CCP § 1008 provides that any party affected by a court's prior order may request that the court "reconsider the matter and modify, amend or revoke the prior order." (CCP § 1008(a).) A motion for reconsideration under CCP § 1008 is the exclusive means to modify, amend, or revoke a court order. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1499.) Such motion must be brought within 10 days after service of written notice of entry of the order and must be "based upon new or different facts, circumstances, or

law” than those before the court at the time of the original ruling. (CCP § 1008(a).) When a party seeks reconsideration, he or she must show a “satisfactory explanation for failing to provide the evidence earlier, which can only be describes as a strict requirement of diligence.” (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690; see also, *Cradduck v. Hilton Domestic Operating Co.* (2025) 112 Cal.App.5th 284, 304; *California Correctional Peace Officers Ass’n v. Virga* (2010) 181 Cal.App.4th 30, 47.) “The burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the original hearing.” (*Cradduck, supra*, 112 Cal.App.5th at 304 [internal quotations and citations omitted].) The legislative intent was to restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (*Gilberd, supra*, 32 Cal.App.4th at 1500.) Facts known by the party seeking reconsideration when the original ruling was made are not considered “new or different.” (*In re Marriage of Herr* (2009) 174 Cal.App.4th 1463, 1468.)

First, the moving papers are procedurally defective. A motion for reconsideration must be accompanied by an affidavit stating what application was made before, what judge heard the matter, what orders were made, and what new or different facts, circumstances, or law are claimed to be shown. (CCP § 1008(a).) Plaintiff provides the required declaration on reply, which is the precise issue they argue is grounds for the motion – that is, purported “new” evidence on reply. Regardless of the procedural deficiency, the motion also warrants denial on the merits.

Plaintiff argues the court should reconsider its ruling because it did not address the “springing activation clause” in its order and that because advanced health care directive was only included on reply, it qualifies as “new” evidence warranting reconsideration. It does not. To move for reconsideration of a prior court order on the basis of “new or different facts” or newly discovered evidence, the moving party must provide a satisfactory explanation for the failure to produce that evidence at an earlier time. (*Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 353.) Plaintiff’s argument is that the advanced health care directive is new evidence on reply – not newly discovered evidence or facts. Plaintiff counsel’s reply declaration states he “...had no reason to analyze the specific activation provisions...[because] the AHCD had not been put at issue by Defendants’ original moving papers.” (Declaration of Derek J. Wilson, ¶ 6.) Counsel does not dispute the assertion that the advanced health care directive was in Plaintiff’s possession prior to the motion to compel arbitration. Counsel’s admitted failure to analyze the directive simply because he assumed it wasn’t at issue does not qualify as “new or different facts” sufficient for the court to reconsider its prior ruling. Notwithstanding, even if the advanced health care directive was new evidence, Plaintiff’s argument fails. As with the opposition, Plaintiff’s counsel seems to misunderstand the burden for proving the existence of an arbitration agreement. California Rules of Court, rule 3.1330 provides that a party seeking to compel arbitration must attach a copy of the agreement to the petition or the petition must set forth the provisions of the agreement. *The moving party needs only to allege the existence of an*

agreement, and once they have done so the burden shifts to the responding party to prove the falsity of the purported agreement. (Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 219; emphasis added.)

The Arbitration Defendants' initial burden was minimal – “As a preliminary matter the [trial] court is only required to make a finding of the agreement’s existence, not an evidentiary determination of its validity. [Citation.]” (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1058 [held defendant employer met its initial burden by attaching to petition to arbitrate a copy of the purported arbitration agreement bearing employee’s electronic signature].) The moving party need not introduce evidence of the authenticity of the signature on the arbitration agreement as part of its prima facie showing of the existence of a valid agreement until authenticity of the agreement is challenged. (*Id.*; *Condee, supra* 88 Cal.App.4th at 218.)

The court based its ruling regarding the existence of an arbitration agreement on the Arbitration Defendants meeting this initial burden and Plaintiff’s subsequent failure to provide evidence of the falsity of the purported agreement. Plaintiff only argued the Arbitration Defendants failed to meet their burden by not establishing that Ms. Drafton had authority to bind him. But Plaintiff provided *zero* evidence in support of this argument. With the initial burden met, Plaintiff was required to carry the burden of *producing evidence* to challenge the authenticity of the agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) Without any evidence that sufficiently or properly challenged Ms. Drafton’s authority, Plaintiff failed to meet his burden, and the court thus did not factor in the evidence offered on reply because the analysis ends with such failure. Plaintiff’s assertion the court “accepted” the advanced health care directive as establishing Ms. Drafton’s authority is incorrect.

Plaintiff makes a final argument that the court should also reconsider its ruling regarding CCP § 1281.2(c) because the ruling did not address the controlling California authority directly on point. Plaintiff argues the court failed to address *Mt. Diablo Medical Center v. Health Net of California, Inc.* (2002) 101 Cal.App.4th 711. This argument is improper for a motion for reconsideration because it is not based on new or different facts, circumstances, or law.

Notwithstanding the improper request for reconsideration on these grounds, is incorrect that *Mt. Diablo* is “directly on point.” The arbitration agreement at issue in *Mt. Diablo* did not specifically state that the FAA’s procedural rules apply. Rather, the court in *Mt. Diablo* analyzes a generic choice of law clause and its effect on whether the FAA or California state procedural rules apply. (*Id.* at 722.) The clause in *Mt. Diablo* stated, “[t]he validity, construction, interpretation and enforcement of this Agreement’ shall be governed by California law” and the court explained that, “The explicit reference to enforcement reasonably includes such matters as whether proceedings to enforce the agreement shall occur in court or before an arbitrator.” (*Id.*)

In comparison, the agreement here states, “...the parties agree that this Agreement is to be governed by the [FAA] and *the procedural rules set forth in the [FAA]* shall govern

any and all arbitration proceedings, *including any petition to compel arbitration.*" (Declaration of Ariona Quijano in support of Motion to Compel Arbitration, Exhibit A, Article VII, § 7.2; emphasis added.) This specific incorporation of the FAA's procedural rules is what preempts CCP § 1281.2(c) regardless of whether the subsequent contract provision excluding CCP § 1281.2(c) is enforceable or not as Plaintiff also argues. *Mt. Diablo* is not applicable and Plaintiff's argument is entirely without merit even if it was supported by new or different facts, circumstances, or law.

The motion for reconsideration is denied in its entirety.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600810	STALLWORTH vs NEW DAY CHRISTIAN FELLOWSHIP CHURCH	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

The meet-and-confer requirement has been met.

Judicial Notice

New Day asks the Court to take judicial notice of its Statement of Information, filed 7/6/26 with the California Secretary of State. **The court grants the request for judicial notice of the document as to its existence, but not the truth of the matter, pursuant to Evid. Code § 452(d).**

New Day moves to strike Plaintiff's claim for punitive damages on two grounds: (1) that it is a religious corporation, and C.C.P. § 425.14 only allows a Plaintiff to bring a claim for punitive damages against a religious corporation after a court order, which Plaintiff here did not obtain; and (2) Plaintiff has not sufficient facts to support a claim for punitive damages against New Day.

C.C.P. § 425.14

Pursuant to C.C.P. § 425.14, "[n]o claim for punitive or exemplary damages against a religious corporation or religious corporation sole shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive or exemplary damages to be filed. The court may allow the filing of an amended pleading claiming punitive or exemplary damages on a motion by the party seeking the amended pleading and upon a finding, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established evidence which substantiates that plaintiff will meet the clear and convincing standard of proof under Section 3294 of the Civil Code." (C.C.P., § 425.14.)

Here, New Day submits a Statement of Information it filed to show it is a “religious corporation.” (RFJN; Li Decl., Ex. C.) However, nowhere in that document does it state that New Day is a religious corporation (as opposed to a non-profit corporation). Additionally, even if it did, the Court can only take judicial notice of the existence of the document, not the truth of the matter contained therein. As Plaintiff does not allege in the Complaint that New Day is a religious organization, based on the pleadings and judicially noticed facts, it is unclear if C.C.P. § 425.14 applies. If Plaintiff contends that New Day is a religious institution, then Plaintiff must bring a motion pursuant to C.C.P. section 425.14 to obtain a court order allowing assertion of a claim for punitive damages, but at this point, as stated, it is unclear if section 425.14 applies.

The Claim for Punitive Damages Is Not Sufficiently Stated

A plaintiff may recover exemplary or punitive damages where it is proven that “the defendant has been guilty of oppression, fraud or malice.” (Civ. Code § 3294(a).) “Malice” means either the defendant intended to cause injury to plaintiff or the defendant’s conduct was “despicable” and carried on with a willful and conscious disregard of the rights and safety of others. (Civ. Code, § 3294(c)(1).) “Oppression” is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights. (Civ. Code, § 3294(c)(2).) “Despicable conduct” is conduct that is “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (*Scott v. Phoenix Schools, Inc.* (2009) 175 Cal.App.4th 702, 715.)

Claims for punitive damages must be pleaded with particularity as to the facts constituting the alleged egregious conduct. (*G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29; *Grieves v. Sup. Ct.* (1984) 157 Cal.App.3d 159, 166.) “[A] conclusory characterization of defendant’s conduct as intentional, willful and fraudulent is a patently insufficient statement of ‘oppression, fraud, or malice, express or implied,’ within the meaning of section 3294.” (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Rather, the pleading must contain factual allegations of wrongful motive, intent, or purpose. (*Cyrus v. Haveson* (1976) 65 Cal.App.3d 306, 317.)

Plaintiff alleges New Day was aware of Holcomb’s dangerous propensities because numerous same or similar incidents had occurred on the Premises previously, and hired Holcomb and allowed her to be on the Premises anyway. (Complaint at ¶¶ 17, 51-52.) These allegations are insufficient to support a claim for punitive damages, as they do not establish despicable conduct, that New Day was aware of the probable dangerous consequences of its actions, or that New Day willfully disregarded those consequences. While Plaintiff also alleges that New Day had “(1) actual knowledge of the peril/danger they subjected Plaintiff to; (2) actual knowledge of the probability that Plaintiff would in fact be injured as a result of said defendants misconduct/omission; and (3) a conscious decision to subject Plaintiff to said probability of injuries and harm and/or a conscious decision not to act to prevent Plaintiff from being injured and harmed [Complaint at ¶ 56], such conclusory allegations are insufficient to support a claim for punitive damages.

(See, *Brousseau, supra*, 73 Cal.App.3d at 872.) Therefore, Plaintiff's punitive damages claim is not sufficiently stated.

The motion to strike is granted with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first, because the claim for punitive damages is not sufficiently stated.

Moving party is ordered to submit a proposed order consistent with this ruling by no later than 5:00 p.m. on July 16, 2026.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2601298	HAGER vs ADJUSTFIRST, INC.	DEMURRER ON COMPLAINT

Tentative Ruling:

The meet-and-confer requirement has been met.

Demurrer to Entire Complaint on Ground of Misjoinder (Code Civ. Proc., § 430.41(d))

Misjoinder of parties may be challenged by a special demurrer, pursuant to Code of Civil Procedure section 430.10, subdivision (d), which provides in relevant part: "The party against whom a complaint ... has been filed may object, by demurrer ... to the pleading on ... the following grounds: ...[¶]... (d) There is a defect or misjoinder of parties." (Code Civ. Proc., § 430.10(d).) Demurrer on the ground of misjoinder lies if the defect appears on the face of the complaint or matters judicially noticed. (*Royal Surplus Lines Ins. Co., Inc. v. Ranger Ins. Co.* (2002) 100 Cal.App.4th 193, 198, citing Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2002) ¶¶7:78-7:83.2.) "Although the code seems to authorize the sustaining of a demurrer solely on such a technical objection [of misjoinder], the authorities indicate that the defendant is entitled to a favorable ruling only when he can show some prejudice suffered or some interests affected by the misjoinder. [Citation.]" (*Ibid.*) Here, Sevilla claims that the Complaint is subject to a demurrer based on misjoinder because there are no allegations in the Complaint to impose any individual liability against him. However, the sufficiency of each cause of action should be examined individually as to whether a claim has been stated, not based on a general observation that Plaintiff's failure to state sufficient facts justifies a challenge as to the entire pleading based on misjoinder. **Defendant's demurrer to the entire Complaint based on the ground of misjoinder is overruled.**

Demurrer to Entire Complaint on Ground of Uncertainty

"[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. [Citation.]" (*Mahan v. Charles W. Chan Insurance Agency, Inc.* (2017) 14 Cal.App.5th 841, 848, fn. 3.) "Even

as against a special demurrer, a plaintiff is required only to 'set forth in his or her complaint the essential facts of the case with reasonable precision and with particularity sufficiently specific to acquaint the defendant of the nature, source, and extent of his or her cause of action.' [Citation.]” (*County of Santa Clara v. Superior Court* (2009) 171 Cal.App.4th 119, 126.) Where a demurrer is made upon ground of uncertainties, it must distinctly specify exactly how or why the pleading is uncertain, and where such uncertainty appears. (See *Fenton v. Groveland Comm. Services Dist.* (1982) 135 Cal.App.3d 797, 809.)

Defendant Sevilla has correctly pointed out the Complaint is uncertain. The pleading is uncertain to the extent Sevilla (who has been named individually) cannot reasonably respond as the Complaint refers to Sevilla and Reconstruction collectively as “Construction Defendants” and does not distinctly state what actions or omissions by Sevilla in his individual capacity caused Plaintiff’s injuries. Notably, Defendant Sevilla argues the breach of contract claim fails as to him because the Complaint does not allege Sevilla personally signed or otherwise became bound individually. As Defendant argues, “Directors and officers are not personally liable on contracts signed by them for and on behalf of the corporation unless they purport to bind themselves individually.” (*United States Lib. Ins. Co. v. Haidinger-Hayes, Inc.* (1970) 1 Cal.3d 586, 595.) A corporate officer cannot be held personally liability absent allegations that he or she entered into a contract with plaintiff on his or her own behalf or purported to be bound personally. (See *Fraces T. v. Village Green Owners Assn.* (1986) 42 Cal.3d 490, 469, fn. 20.) Personal liability under contract is determined by looking at the terms of the agreement irrespective of whether the signor signs a contract referencing his corporate officer status. (*Sebastian Int’l, Inc. v. Peck* (1987) 195 Cal.app.3d 803, 809.) Here, the Complaint is uncertain as to whether Sevilla may be personally held contractually liable to Plaintiff as the Complaint neither includes a copy of the Construction Contract nor states its essential terms verbatim.

As to Plaintiff’s tort claims, it is unclear what allegations supply the basis for imposing personal liability against Sevilla. As the Supreme Court in *Fraces T. v. Village Green Owners Assn.* (1986) 42 Cal.3d 490 noted, “[t]he legal fiction of the corporation as an independent entity – and the special benefit of limited liability permitted thereby – and the special benefit of limited liability permitted thereby – is intended to insulate stockholders from personal liability for corporate acts and to insulate officers from liability for corporate contracts.” Notably, however, the court recognized that “the corporate fiction, ... was never intended to insulate officers from liability for their own tortious conduct.” (*Id.* at 466.) But, even if a corporate officer may be held liable for his own tortious actions, here, no facts are alleged to state a cause of action against Sevilla individually. Ordinarily, the complaint is sufficient if it alleges ultimate rather than evidentiary facts, and the plaintiff is required only to set forth the essential facts of the case with “reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) However, Plaintiff has not alleged the minimal level of facts to distinguish between Sevilla’s liability as a corporate officer of Reconstruction

and as an individual. **As such the demurrer on the ground of uncertainty is sustained with leave to amend.**

The demurrer is sustained with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first, because the Complaint is uncertain.

Moving party is ordered to submit a proposed order consistent with this ruling by no later than 5:00 p.m. on July 16, 2026.